Premier Estate Planning

GUIDE · CORE PLANNING

The cornerstones of *estate planning.*

A plan is not merely a record of how your assets pass. It is part of a larger financial conversation — built to carry your wishes, your values, and the people you love through whatever comes next.

Prepared by **Derek Carrillo, Esq.**

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Most Florida families need the same handful of instruments — quiet on their own, formidable together. This overview walks through the six documents at the heart of a complete plan, the tax structures worth knowing about, and the questions clients ask us most.

The six cornerstone documents

1 · The Revocable Living Trust

A living trust is a flexible arrangement that holds title to your assets during your lifetime. You stay in full control as trustee; the trust simply owns the property on your behalf. Because the trust — not you personally — holds title, those assets pass to your beneficiaries on your death without Florida probate, sparing your family its delay, cost, and public record.

> *A trust is not an instrument of secrecy. It is an instrument of efficiency — and privacy.*

2 · The Family Protection Subtrust

A "trust within the trust" that takes effect after your death. Instead of handing assets to your beneficiaries outright — exposed to their creditors, divorces, and lawsuits — the subtrust holds and manages those assets, distributing them on the standard you set and shielding the principal from forces no one can predict.

3 · The Last Will & Testament

In a funded trust plan the will works mainly as a *pour-over will*: a safety net that catches anything not titled in the trust and directs it inside. It also does what a trust cannot — most importantly, it is where you nominate the guardian for your minor children. Without a will, a Florida court decides who raises them.

A COMMON MISCONCEPTION

"I have a will, so I don't need a trust." A will alone still passes through probate. For Florida residents with real property, a funded trust is almost always the more sensible foundation, with the will as backup.

4 · General Durable Power of Attorney

Grants someone you trust the authority to manage your financial affairs if you are incapacitated. "Durable" is the operative word — it keeps working precisely when it is most needed, letting your agent pay bills, manage investments, file taxes, and handle real estate when you cannot.

5 · Healthcare Directives

An **Advance Directive (Living Will)** records your wishes for life-sustaining treatment and end-of-life care, relieving your family of the hardest conversation. A **Healthcare Surrogate Designation** names the person who applies those wishes to the facts of the moment, alongside your physicians.

6 · HIPAA Authorization

Federal privacy law restricts who may receive your medical information. A HIPAA authorization names the people — usually your spouse, agent, and surrogate — permitted to receive it, so those helping you are not stopped at the hospital's privacy desk.

Tax planning considerations

A/B (credit-shelter) planning. For married couples with larger estates, separate trusts can let each spouse use their individual estate-tax exemption, passing more wealth to the next generation tax-efficiently.

Irrevocable trusts with lifetime protection. For higher-net-worth families concerned about federal or state estate tax, an irrevocable trust can offer estate-tax reduction, lifetime gifting, and protection from creditors and divorce — in exchange for less day-to-day flexibility. These are long-horizon decisions that reward careful counsel.

Common questions

What is probate, and why avoid it?

Probate is the court process that validates a will, appoints an executor, settles debts, and distributes what remains. It tends to be slow, costly, and public — and the court, not your family, controls the pace. A funded revocable trust lets most assets bypass it entirely.

How often should I update my plan?

Review after any major life event — marriage, divorce, a new child, a move, a death in the family. Absent those, a look every three to five years keeps the plan aligned with your intentions.

Whose guidance should I seek?

Estate planning is the ultimate financial-planning exercise. At minimum your team should include an experienced attorney; where you work with a financial advisor, including them in the conversation produces a more coherent strategy.

PUTTING IT TOGETHER

A complete Florida plan typically includes all six documents, drafted to work as one coherent instrument of your wishes. PEP designs, drafts, and executes the full set under a single flat fee.

WORK WITH US

Speak with Derek.

The conversation begins with a complimentary thirty-minute call.

Derek Carrillo, Esq.

Founder & Managing Attorney · Premier Estate Planning

Every plan at Premier Estate Planning is drafted by the attorney whose name is on the engagement letter. If you would like to discuss what an appropriate plan looks like for your family, reach out directly — there is no obligation, and most callers leave the conversation with a clearer sense of their next steps.

CONTACT

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STEP 01

Consultation

A complimentary thirty-minute call to understand your circumstances.

STEP 02

Flat fee in writing

We outline a path forward and quote one fixed fee — no surprises.

STEP 03

Plan in ~2 weeks

Drafting, review, and an in-office signing. You leave with a bound portfolio.